

M/S Ganga Dairy v. State of U.P. & Others

Allahabad High Court · Division Bench · 4 August 2025 final order (order-sheet 5.8.2016 to 4.8.2025; petition consigned to record as no cause of action survives) · 2025:AHC:131619-DB · Writ - C No. 36336 of 2016 · **Writ petition disposed of. Upon perusal of the record the Division Bench found that no cause of action survives and consigned the matter to record; liberty was granted to the petitioner to file an application for recall/variation/modification of the order in accordance with law in the event it takes the view that the cause of action still survives. The petitioner's challenge (raised in 2016) to the demand of 'protective load charges' for October 2006 to September 2015 under Clause 4.27 of the U.P. Electricity Supply Code, 2005 was not adjudicated on the merits.**

Source file: WRIC(A)_36336_2016.pdf

HEADNOTE

M/S Ganga Dairy challenged, by Writ - C No. 36336 of 2016, a demand notice raising 'protective load charges' for the period October 2006 to September 2015, contending that it had never made any request - by application or agreement - in terms of Clause 4.27 of the U.P. Electricity Supply Code, 2005 for protective load; the Electricity Department, on instructions, asserted that the petitioner had been given the protective-load facility pursuant to a written application made by it, thus joining a pure question of fact. This record of the Allahabad High Court is not a decision on that dispute. After the petition lay pending for nine years through a long series of adjournments (counsel's illness slips, awaited counter and rejoinder affidavits, and an amendment application) and passed through several benches, it came up on the 'Oldest Pending Cases in this High Court for Priority Hearing' warning list, when none appeared for the petitioner even on a revised call. By order dated 4 August 2025 (Neutral Citation 2025:AHC:131619-DB) the Division Bench, upon perusal of the record, held that no cause of action survives, consigned the matter to record and disposed of the writ petition, granting the petitioner liberty to apply for recall/variation/modification if it took the view that the cause of action still survived. The merits of the protective-load demand under Clause 4.27 - in particular whether such charges can be levied where the consumer denies any application or agreement for protective load - were therefore left undecided.

FACTUAL SUMMARY

The petitioner, M/S Ganga Dairy, was served a demand notice by the U.P. electricity authorities raising 'protective load charges' for the period October 2006 to September 2015. It filed Writ - C No. 36336 of 2016 before the Allahabad High Court against the State of U.P. and two others, praying for quashing of that demand. Its contention, recorded in the order dated 9 August 2016, was that it had never made any request - by way of any application or agreement - in terms of Clause 4.27 of the U.P. Electricity Supply Code, 2005 for protective load, so the charges could not be demanded of it. The Electricity Department, through counsel who had taken instructions, stated that the petitioner had been given the protective-load facility pursuant to a written application made by it, and a counter affidavit was directed and later filed. Thereafter the matter was repeatedly adjourned between 2016 and 2023 - on counsel's illness slips, for a rejoinder affidavit, and on an amendment application by the petitioner (with time to the respondents to reply) - and passed through several benches. The petition ultimately surfaced on the Court's warning list of 'Oldest Pending Cases in this High Court for Priority Hearing'. On 4 August 2025, when none appeared for the petitioner even on a revised call and only the Standing Counsel appeared for the State respondents, the Division Bench (Shekhar B. Saraf and Prashant Kumar, JJ.), upon perusal of the record, found that no cause of action survives, consigned the matter to record and disposed of the writ petition, granting liberty to the petitioner to apply for recall/variation/modification in accordance with law if it considered that the cause of action still survived.

REUSABLE CONSTRUCTIONS

1. A writ petition that has lain pending for years and appears on the High Court's warning list of 'Oldest Pending Cases in this High Court for Priority Hearing', in which none appears for the petitioner even on a revised call and a perusal of the record discloses no surviving cause of action, may be consigned to record and disposed of, with liberty to the petitioner to apply for recall/variation/modification of the order in accordance with law should it take the view that the cause of action still survives. *order of 4.8.2025*
2. Disposal of a long-pending writ by consignment to record for want of a surviving cause of action, coupled with liberty to seek recall/variation/modification, does not adjudicate the merits of the underlying challenge - here, the

demand of 'protective load charges' under Clause 4.27 of the U.P. Electricity Supply Code, 2005 - which is left open for any recall stage. [order of 4.8.2025](#)

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.27

OBITER

Non-merits disposal of a Clause 4.27 protective-load-charges challenge: a long-pending writ consigned to record for want of a surviving cause of action, with liberty to seek recall

QUESTION

How is a long-pending writ challenging a demand of protective-load charges under Clause 4.27 of the U.P. Electricity Supply Code, 2005 disposed of where the petitioner does not appear even on a revised call and the record discloses no surviving cause of action?

HOLDING

The Division Bench did not decide the Clause 4.27 dispute. Upon perusal of the record it held that no cause of action survives, consigned the matter to record and disposed of the writ petition, granting the petitioner liberty to file an application for recall/variation/modification of the order in accordance with law in the event it takes the view that the cause of action still survives. The validity of the protective-load demand for October 2006 to September 2015 - contested on the ground that the consumer made no application or agreement under Clause 4.27 - was thus left unadjudicated. [order of 4.8.2025](#)

EVIDENCE “Upon perusal of the record, it appears that no cause of action survives, and accordingly, the matter is consigned to record” [order of 4.8.2025](#)

EVIDENCE “liberty is granted to the petitioner to file an application for recall/variation/modification of this order in accordance with law” [order of 4.8.2025](#)

FLAG Order-sheet series (2016-2025) with no printed page numbers; pins are order dates (pin_basis=date). Nature is obiter - this is a procedural disposal for want of a surviving cause of action, not a ratio on Clause 4.27; the merits of the protective-load demand were not decided. The operative order of 4.8.2025 carries numbered paragraphs 1-6 and Neutral Citation 2025:AHC:131619-DB.

PRINCIPLE TAGS

protective-load-charges-clause-4.27-challenge A demand of 'protective load charges' under Clause 4.27 of the U.P. Electricity Supply Code, 2005 was challenged on the ground that the consumer made no application or agreement for protective load; the Department asserted a written application was made. The dispute (a question of fact) was not decided. [order of 9.8.2016](#)

long-pending-writ-consigned-to-record-no-cause-of-action-survives A years-old writ on the 'Oldest Pending Cases in this High Court for Priority Hearing' warning list, with none appearing for the petitioner on a revised call and no surviving cause of action on the record, is consigned to record and disposed of, with liberty to seek recall/variation/modification. [order of 4.8.2025](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER 'PROTECTIVE LOAD CHARGES' FOR OCTOBER 2006 TO SEPTEMBER 2015 COULD BE DEMANDED UNDER CLAUSE 4.27 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 WHERE THE CONSUMER CONTENTS IT MADE NO APPLICATION OR AGREEMENT FOR PROTECTIVE LOAD, AND THE LICENSEE ASSERTS A WRITTEN APPLICATION WAS MADE.

The core factual and legal dispute in the writ; expressly left undecided when the petition was consigned to record on 4 August 2025 for want of a surviving cause of action, with liberty granted to seek recall/variation/modification. [SCJ-1988] [order of 9.8.2016](#)

RELATED CASES — SEE ALSO

SCJ-1975 — Sisco Industries - a Clause 4.27 protective-load matter (interim stay of a licensee communication requiring protective load); the closest spine sibling on the same clause.

SCJ-1988 — Ranjeeta Cold Storage & Ice Plant - Clause 4.27 protective-load additional charges challenged for want of scheduled rostering; same protective-load family, likewise not finally decided on the merits.

